
**DEPARTMENT
POLICY**

When clients request replacement of their food assistance benefits, follow policy in BAM 502, Food Benefit Replacement.

INTRODUCTION

Disaster assistance benefits are designed to provide disaster cash and disaster food assistance to households affected by federally declared disasters/mandatory evacuations including but not limited to tornadoes, floods, storms, chemical spills etc. Eligibility for cash, the Disaster Relief Program (DRP), and Disaster Food Assistance Program (DFAP) is not limited to households that are typically eligible for Financial Independence Program (FIP) and Food Assistance Program (FAP).

DFAP has also been developed for other households requesting food assistance who sustain less apparent disaster damage and provided verification of the damage. This may include water damage to furniture or essential personal items, water in the basement due to flooded sewers, and other damage.

For individual assistance, follow Disaster Assistance policy once a disaster is federally declared. Clients who come to Michigan as a result of a federally declared disaster in another state may apply for DRP. DFAP applies to Michigan residents who are victims of a federally declared disaster.

The Food and Nutrition Service (FNS) will approve the operation of a DFAP in Michigan once a federally declared disaster/mandatory evacuation occurs. The DFAP application period will occur within 48 hours of approval of the DFAP.

See Concurrent Receipt of Benefits and Semi-Annual Contacts/Mid-Certifications/Redeterminations in this item for treatment of ongoing cases.

DRP

DRP is a lump sum, non-recurring benefit paid to families who have been evacuated from their homes due to a natural or technological disaster. The federal government must issue a major disaster declaration for the area that includes their normal residence.

Program Benefits

The intent of issuing DRP is to do the following:

- Provide short term, non-recurring payments to families recovering from a disaster to prevent the need to apply for ongoing FIP.
- Provide financial support to families affected by a disaster that will not count toward their federal or - state time limit to receive cash assistance.
- Provide financial support to families affected by a disaster in a way that will not impact Michigan's work participation rate.
- Involve less work than processing ongoing FIP.
- Focus the work participation program employment resources on long-term FIP recipients.
- Issue disaster relief payments in lieu of State Emergency Relief (SER), saving state funds.

**DISASTER FOOD
ASSISTANCE
PROGRAM**

This one-time food assistance payment is for households that lived or had been employed in the disaster area at the time of the disaster. These households must plan on purchasing food during the disaster period.

Note: Active FAP recipients residing in the declared disaster area may receive an automatic replacement of their FAP benefits through a Bridges mass update upon FNS waiver approval.

Eligibility Criteria

Households **must** have experienced at least **one** of the following to qualify for benefits:

- Food lost due to disaster.
- Damage to or destruction of their home or place of employment.

- Lost or inaccessible income including reduction or termination of income, or a delay in receipt of income for a substantial part of the benefit period.
- Inaccessible liquid assets for a substantial portion of the benefit period.
- Unreimbursed, out-of-pocket disaster-related expenses not expected to be reimbursed during the benefit period.

APPLICATION

DRP, DFAP

A DHS-3220, Application for Disaster Cash and Food Assistance, must be completed to request disaster benefits for Michigan residents. A request for disaster benefits may be in person or by an authorized representative applying in person for the client.

The date of application is the date the local office receives the completed application.

DRP

Clients from another state, who are applying for an out-of-state disaster, must complete the MDHHS-1171, Assistance Application, the MDHHS-1171-CASH, and the DRP addendum, Out-of-State Disaster Cash Assistance Application, to be considered for disaster assistance.

Application Period

DRP, DFAP

After the Food and Nutrition Service (FNS) approves the state's request to operate DFAP, clients may apply for disaster assistance. The application period is generally **seven** calendar days. However, the state has the option of decreasing the application period based on the circumstances. The disaster will be defined in Bridges to complete the registration process. If simultaneous disasters occur, Bridges will identify each disaster separately. Choose the correct disaster for which the client is applying. If a DHS-3220 is received after the seventh day, treat it as a request for assistance and provide the client a MDHHS-1171 and program specific supplement form(s), and/or DHS-1514, State Emergency Relief Application.

Note: In rare instances, the federal government may extend or shorten the application period. If Michigan determines a longer application period is needed due to high demand for disaster assistance, an extension period will be requested from the federal government.

DRP

Clients from another state may apply for disaster assistance in Michigan up to **30** calendar days after the federal government declares an out-of-state disaster.

Where to Apply

DRP, DFAP

Clients may apply for disaster assistance at a designated local office or predetermined temporary location.

Authorized Representatives

The client may choose to designate an authorized representative (AR) for disaster assistance that may file the application for the head of household. This authorized representative, or a different authorized representative chosen by the client, may receive the Bridge card and/or utilize the benefits on behalf of the client. All authorized representatives must be designated in writing. The head of household will need to call the toll-free number on the back of the new Bridge card for a personal identification number (PIN).

STANDARD OF PROMPTNESS (SOP)

DRP

The standard of promptness (SOP) is seven calendar days starting with the application date.

DFAP

The standard of promptness is three calendar days starting with the application date. Questionable applications may be given an SOP of seven calendar days and a front-end eligibility (FEE) referral must be made.

INTERVIEW REQUIREMENTS

DRP, DFAP

Conduct an in-person interview at application before determining eligibility. If clients choose to have an authorized representative file an application on their behalf, the authorized representative must participate in an in-person interview.

DFAP

Active FAP clients do not need to participate in an interview or complete an application. However, they must complete the DHS-601, Food Replacement Affidavit, unless benefits are automatically replaced through a mass update upon FNS waiver approval.

DRP

An interview is **not** required before denying the program if it is clear from the application or other sources that the group is ineligible.

Deny DRP on the 30th day if the client has not participated in an interview.

DFAP

For DFAP only, conduct an interview before denying the application for assistance even if it is clear from the application or other sources that the group is ineligible.

Deny DFAP on the 7th day if the client has not participated in an interview.

DRP, DFAP

If the group is ineligible **or** refuses to cooperate in the application process, certify the denial of the appropriate program and Bridges will generate a DHS-82, Disaster Benefits Eligibility Notice.

BENEFIT PERIOD

The benefit period for disaster benefits is 30 days from the date of the federally declared disaster or the date of any mandatory evacuation preceding the declared disaster. During this 30-day period, the following are used to determine eligibility:

- The household's income received or expected to be received.

- The household's accessible liquid assets.
- The household's unreimbursed disaster expenses.

Multiple Disasters

A client can receive only one disaster payment per declared disaster. If there are multiple disasters in a 30-day period, each disaster must be federally declared and identified on Bridges separately.

DFAP

Households cannot receive more than one DFAP allotment in any benefit period. If there are multiple federally declared disasters in the same disaster area in the same 30-day period, the household may participate only in one automatic replacement in the benefit period. If the second disaster destroys the original replacement, the client can request a second replacement by completing a DHS-601, Food Replacement Affidavit.

APPLICATION PROCESSING

DRP, DFAP

A new case number is given to each disaster application in Bridges, even if the head of household already has an existing case. The disaster application takes priority over any pending applications that the client may already have.

Example: Client has a pending FIP/FAP application in May. A disaster is federally declared in June and the client is eligible for DRP/DFAP. DRP/DFAP benefits are issued for June. FIP/FAP eligibility is determined for May, July and forward.

Send the DHS-3503, Verification Checklist, (VCL) out of MS Word to the client. Encourage clients to bring all verifications with them, however; do **not** delay processing the disaster application for the return of verifications that are not mandatory.

Note: For DFAP only, identity is the only required verification.

NON-FINANCIAL ELIGIBILITY FACTORS

Identity

The identity of the head of household **must** be verified. If an authorized representative is applying on behalf of the head of household, the identity of the authorized representative must also be verified.

Verification Sources

Verification of identity includes but is not limited to:

DRP and DFAP

- Driver's license.
- State-issued ID.
- Military ID.
- School-issued identity card.
- Social Security Administration cross match in Bridges.

Residence

DRP, DFAP

For disasters that occur in Michigan, the client's geographical location must be in a federally declared disaster area. The client must have lived or been employed in the disaster area at the time of the disaster.

Clients that are indicated as homeless in Bridges at the time the disaster occurred and state they resided in the geographical disaster location are potentially eligible for disaster assistance. Applicants who are staying in a shelter, regardless of their length of stay, are potentially eligible.

Note: The temporary address of a homeless client does not have to be in the declared geographical disaster location.

Overrides

If the client does not have a ZIP code or the ZIP code from Postal Soft is incorrect, a manager/supervisor must approve the override by initialing the DHS-3220. A daily report will indicate the cases that require a manual override.

DRP

Applicants must have been evacuated from their home or forced to relocate in order to receive a payment. The family cannot be residing in the home where the disaster occurred at the time of application.

For clients coming to Michigan from out-of-state federally declared disasters, the out-of-state address must be in the declared area (usually by county or parish). The client must have moved to Michigan due to the disaster and apply for disaster assistance within 30 days of the disaster being declared.

Note: Federally declared disasters are listed at www.fema.gov/news/disasters.fema.

A client does not have to intend to remain in Michigan to receive DRP.

Verification

DRP, DFAP

Verify residence if possible.

Verification Sources

Verification of residence includes but is not limited to:

- Driver's License.
- Other ID with address.
- Utility bills.
- Tax bills.

Accept client statement if verification is unavailable.

Food Loss

DFAP

Food loss due to a disaster.

Verification

Verify only if questionable.

Verification Sources

- Check if residence is within the disaster area.
- Check with power company.

Group Composition

DRP

The group must contain at least one dependent child and a caretaker and/or a pregnant woman.

A dependent child is an unemancipated child, including a child who receives SSI, who lives with a caretaker and is one of the following:

- Under age 16.
- Age 16 to 18, attending high school/equivalent at the time of the disaster.

A caretaker is a legal parent, stepparent or specified relative who acts as a parent to a dependent child.

A specified relative must be at least age 18 and legally related to the child by blood, marriage, or adoption. Specified relative includes:

- Grandparent (including great or great-great).
- Aunt or uncle (including great or great-great).
- Sibling (including half-sibling).
- Niece or nephew.
- First cousin or first cousin once removed.
- Spouse of any of the above, even if the marriage ended due to death or divorce.
- The parent of a child's putative father.
- A child's legal guardian.
- An adult at least age 21 whose petition for legal guardianship of the child is pending.

All other aspects of group composition (mandatory/optional members) are the same as FIP; see BEM 210.

Note: Do not include members of the household with whom applicants are temporarily staying during the disaster.

DFAP

All members of the household that are living and eating together at the time of the disaster are mandatory group members.

Note: Do not include members of the household with whom applicants are temporarily staying during the disaster.

Group Composition Corrections**DRP, DFAP**

After program certification, any corrections needed for group composition, including member adds, must be done by central office.

Verification

Verify members of the household if questionable.

Verification Sources

Ask the applicant to orally list the names, ages, and birthdates of all household members.

DRP***Pregnancy Verification***

Verify pregnancy only if questionable **and** when DRP eligibility is based solely on the pregnancy.

Pregnancy Verification Sources

Use a statement, including expected date of delivery, from one of the following:

- Doctor of medicine (MD).
- Doctor of osteopathy (DO).
- Physician's assistant (PA).
- Ob-gyn nurse practitioner (NP).
- Ob-gyn clinical nurse specialist (NS).
- Certified nurse-midwife.
- Form DHS-49, Medical Examination Report, DHS-54A, Medical Needs or other written statement may be used.

**Disqualified Group
Members****DRP, DFAP**

Disqualified clients are potentially eligible for disaster benefits unless they are disqualified in an active EDG.

Pete is currently disqualified on an active FIP and FAP EDG for failing to provide his Social Security number. He is not eligible for disaster benefits. However, if the EDG is closed, Pete would be potentially eligible for disaster benefits.

An applicant's status as any of the following is not relevant to his or her eligibility for DFAP:

- Student.
- Striker.
- Citizen/or non-citizen.
- Work program participant.
- Someone disqualified under the regular FAP program.

**Social Security
Number****DRP**

A Social Security number (SSN) must be provided, or the client must cooperate in obtaining an SSN for each group member.

Verification

Client statement is acceptable.

DFAP

An SSN is not a requirement. Do not deny/disqualify a client if they refuse or are unable to provide an SSN.

**Citizenship/Non-
Citizen Status****DRP**

Individuals must meet citizenship/non-citizen status requirements; see BEM 225.

Verification

Client statement is acceptable.

DFAP

Citizenship and non-citizen status are not a requirement.

**School Attendance
and Student Status****DRP**

Clients who are 16 to 18 years old and **not** the head of household must be attending high school/equivalent full-time at the time of the disaster to be eligible for a DRP benefit. If the disaster is during a vacation, the 16- to 18-year-old must be returning to school after break.

Verification

Client statement is acceptable.

DFAP

School attendance and student status determination is not a requirement.

**Intentional
Program Violation
(IPV)****DRP**

A client who is disqualified for an IPV is not eligible to receive DRP.

DFAP

A client who is disqualified for an IPV may still receive benefits under DFAP.

**Concurrent
Receipt of Benefits****DRP, DFAP**

The eligibility determination month (EDM) for disaster benefits will be the month in which the disaster occurred or the month of the mandatory evacuation date, whichever is earlier.

Example: Mandatory evacuation date is 6/29. Disaster occurred 7/1. Benefits issued 7/3. EDM is June. Benefit period will be 6/29 to

7/29. Client is potentially eligible for regular FIP/FAP benefits in July.

DRP

A client is not eligible for FIP benefits the same month as a DRP benefit.

Send a DHS-3782, Out-of-State Inquiry, for clients who come to Michigan from out-of-state. Do **not** delay processing while waiting for a response. Advise clients if they receive duplicate benefits that they must return any assistance they receive from another state for the same period. Failure to return benefits from another state for the same period could result in a 10-year federal disqualification for cash, food, SSI, **and** MA.

DFAP

A client is not eligible for FAP benefits the same month as a disaster benefit.

Ongoing FAP Recipients

Active FAP recipients residing in the declared disaster area may receive an automatic replacement of their FAP benefits through a Bridges mass update upon FNS waiver approval.

Assets

DRP, DFAP

There is no asset limit for disaster benefits. However, accessible liquid assets are used to determine eligibility; see Budgeting Income, Assets and Expenses in this item.

Pursuit of Benefits

The client is not required to pursue any potential benefit; see BEM 270.

Employment Related Activities

Disaster assistance does not have any employment and training requirements as in the BEM 230 series.

**BUDGETING
INCOME, ASSETS
AND EXPENSES****DRP, DFAP**

Budget income, accessible liquid assets, and disaster-related expenses the household expects to receive/have during the 30-day disaster benefit period. Only budget unreimbursed, out-of-pocket, disaster related expenses, not expected to be reimbursed during the 30-day disaster benefit period.

Income

Prospect the **net** earnings the household received or expects to receive in the 30-day benefit period. All income of all household members regardless of age and type of income is countable. **Net** pay is defined as:

- Wages a household receives after taxes and all other payroll withholding such as child support payments, 401K deductions, garnishments, etc. are deducted.
- Self-employment income minus the expenses.
- Unearned income such as RSDI/SSI, unemployment compensation, FIP, worker's compensation, etc. (after all deductions).

Exception: DRP income is **not** budgeted as unearned income in the DFAP budget.

Note: The DRP payment is excluded as income for FAP, CDC and MA. For SER, it is excluded income but any amount of the DRP in the client's possession at the time of SER is a cash asset.

Verification

Verify if possible. Accept client's statement if verification is unavailable.

Assets

Budget all accessible liquid assets. Liquid assets include only:

- Cash on hand.
- Accessible checking/draft and savings/share account balances.

Note: Remember, with ATM cards and electronic transmission, few liquid assets are truly inaccessible.

Verification

Verify if possible. Accept client's statement if verification is unavailable.

Disaster-Related Expenses

Allow the deduction of disaster-related expenses paid or anticipated to be paid **out-of-pocket** by the household during the disaster benefit period. If the household receives or anticipates receiving a reimbursement for these expenses during the disaster period, only the net expense is deductible (do **not** allow the reimbursable expense).

Note: If the household pays disaster-related expenses using a credit card and will pay their credit card bill after the disaster benefit period, that expense is **not** considered out-of-pocket and is not deductible.

No other expenses are considered in determining eligibility for disaster benefits.

Example: If a client pays voluntary child support, it is not considered a disaster expense and is not allowable.

Examples of deductible disaster-related expenses:

- Home repairs.
- Temporary shelter expenses.
- Evacuation expenses.
- Disaster-related personal injury expenses.
- Disaster-related funeral expenses.
- Disaster-related pet boarding fees.
- Expenses related to replacing necessary personal and household items such as clothing, appliances, tools, and educational materials.
- Clean-up items.

- Disaster-damaged vehicle expenses.
- Disaster-related moving and storage expenses.
- Food lost due to the disaster (flooding, power outage, etc.)

Note: Do not mistakenly equate a household's total disaster losses with disaster expenses. For example, a family might report the destruction of their \$80,000 home. However, only that household's out-of-pocket expenses that were not reimbursed or are **not** expected to be reimbursed during that benefit period would be considered for determination of eligibility, not the entire value of their destroyed home.

Verification

Verify disaster-related expenses only if questionable.

Benefit Calculation

DRP, DFAP

The household's net (take-home) income received or expected to be received during the benefit period **plus** its accessible liquid assets **minus** unreimbursed disaster-related expenses equals the countable disaster income. Bridges compares this amount to the disaster income limits based on group size. If the household's disaster income is less than or equal to the disaster income limit, the household is eligible for DRP and /or DFAP; see Income Eligibility and Allotment Tables in this item.

Note: The DHS-3221, Disaster Food Assistance Application Worksheet, may be completed if Bridges is unavailable.

BENEFIT ISSUANCE

Disaster assistance is issued through the normal electronic benefit transfer (EBT) process; see BAM 401E, Electronic Benefit Transfer Issuance System.

**Semi-Annual
Contacts/
Mid-Certifications/
Redeterminations****FIP, FAP, CDC**

EDG's that are active and due for review in the month the disaster occurred will have their review date extended by two months in Bridges. The FAP certification period end date will also be extended in Bridges. This allows workload relief, so redeterminations, semi-annual contacts and mid-certifications are not handled during the disaster.

HEARINGS**DRP, DFAP****Who May Request**

Any household that applied for disaster assistance benefits and was denied benefits may request a fair hearing.

**Who May Not
Request**

Households that never applied for disaster assistance for any reason do not have a right to a fair hearing. This includes households that were unaware of the DRP/DFAP programs or were not able to apply during the application period.

Denials

Clients do **not** have the right to reopen their denied case in order to have their eligibility recalculated because their personal circumstances have changed during or after the application period.

**Supervisory
Review**

A household which has requested a fair hearing is entitled to an immediate, on-site expedited supervisory review which in no way shall interfere with the applicant's right to a fair hearing.

Withdrawal of Request

If a head of household wants to withdraw its request for a fair hearing, the request may be done verbally or in writing. Send a written confirmation of the withdrawal when the client verbally withdraws their fair hearing request.

Hearing Decisions

If an administrative law judge finds in favor of the client, and the client is due a benefit issuance, central office will issue the benefit through a manual process.

RECOUPMENT

Recoupment for DRP and DFAP will be a manual process. The DRP and DFAP agency error, client error and suspected intentional program violation (IPV) must be a priority for recoupment specialists. Recoupment must be started within six months after the disaster. The recoupment procedures will follow current processes in place for each type of error excluding the exceptions listed below.

An IPV committed in DRP/DFAP will increase the number of IPV's a client has. The IPV will be served on regular cash and/or FAP.

Exceptions

Overpayment Processing

When the specialist discovers a potential overpayment (OP) regarding the disaster, make a referral to the Overpayment Establishment Analyst (OEA) within **30 days** of suspecting an OP has occurred using the DHS-4701, Overpayment Referral.

The OEA must make disaster OPs their first priority. Within **30 days** of receiving the referral, the OEA must establish the claim or refer the suspected intentional program violation (IPV) to Office of Inspector General (OIG).

Suspected IPV's must be a priority with OIG and within **30 days** an agent must have determined if the overpayment is an agency or client error or OIG continues with the investigation for IPV. Within **120 days** of receiving the referral, OIG must determine if the case is an IPV and return to the OEA for entering the claim on Bridges.

Overpayment Period

The benefit period for DFAP will be one month. DRP will be three months of benefits for each disaster.

Benefit Collections

Overpaid disaster benefits will automatically be recouped from all respective ongoing benefits. Automated recoupment will never be deducted from disaster benefits.

Collections of disaster benefits will follow the current processes.

LEGAL BASE**DRP**

42 USC 602(a)

DFAP

7 CFR 280.1

INCOME ELIGIBILITY AND ALLOTMENT TABLES**DRP Payment Standard**

Group Size	DRP Payment
1	\$918
2	\$1,209
3	\$1,476
4	\$1,791
5	\$2,082
6	\$2,484
7	\$2,715
8 or more	Add \$240 for each additional person

DRP Monthly Income Limit

Group Size	Monthly Income Limit
1	\$1,805
2	\$2,428
3	\$3,052
4	\$3,675
5	\$4,298
6	\$4,922
7	\$5,545
8 or more	Add \$623 for each additional person

DFAP Maximum Allotment Effective 10-1-25

Group Size	Maximum Benefit
1	\$ 298
2	\$ 546
3	\$ 785
4	\$ 994
5	\$ 1,183
6	\$ 1,421
7	\$ 1,571
8	\$ 1,789
Each Additional Member	+ \$ 218

DFAP Monthly Income Limit Effective 10-1-25

Group Size	Income Limit
1	\$2,258
2	\$2,716
3	\$3,174
4	\$3,647
5	\$4,143
6	\$4,639
7	\$5,098
8	\$5,556
Each Additional Member	+ \$459